VILLAGE NETACAD APP

PRIVACY POLICY

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1. About this Policy

1.1 This Policy explains how we process the personal information of people who use or visit the App, including learners, parents and guardians, instructors, institutional administrators, resellers and website visitors ("you"). It is written to meet our duties under the Protection of Person Information Act (POPIA), including the duty to notify you of how and why we process your information.

1.2 Digititan Holdings (Pty) Ltd is the "responsible party" as defined in POPIA. Where we use a service provider to process information on our behalf, that provider is an "operator".

1.3 Please read this Policy with the App's terms and conditions of use https://villagenetacad.co.za/docs/privacy-policy.pdf . If you are enrolled through a school, college, employer or other institution (an "Institution"), that Institution may also process your personal information under its own privacy notice, and may be a responsible party in its own right.

1.4 Where POPIA requires your consent, we will ask for it separately and plainly. We do not treat your use of the App as consent to anything that requires specific consent.

2. What is personal information?

Personal information is any information that identifies you, or can reasonably be used to identify you, whether you are an individual or (where applicable) a company. It includes:

- who you are (name, ID or student number, email address, phone number, address);
- your characteristics (age, gender, language, and similar details);
- your history (education, qualifications, course results, work history); and
- your activity (log-ins, device identifiers, IP address, in-App behaviour, location data).

Special personal information

We do not ask for this information and ask that you do not submit it through the App. If you tell us about a disability or health need so that we can make an accommodation, we will process that information only for that purpose and only with your consent (or that of your parent or guardian) or as otherwise permitted by sections 27 to 33 of POPIA.

3. What information we collect, and from where

The table below sets out the information we collect, where it comes from and whether you must provide it. If you do not provide information marked "required", we may be unable to open your account or provide the service.

Category	Examples	Source	Required?
Account and identity	Name, surname, email address, mobile number, username, password (stored in hashed form), date of birth or age band, preferred language	You; your Institution	Required
Learning records	Enrolments, course progress, assessment answers and results, badges, certificates, time spent, instructor feedback	You; your instructor or Institution; generated by the App	Required to deliver the service
Institution details	Institution name, class or cohort, learner number, instructor details	Your Institution; you	Required if enrolled through an Institution
Parent or guardian details	Name, contact details and proof of consent	You; your parent or guardian	Required for learners under 18
Identity verification	ID or passport number, only where [a certificate, accreditation or fraud check] requires it	You	Only where stated at the time
Device and technical	IP address, device type, operating system, App version, crash logs, approximate location derived from IP address	Your device (automatically)	Required for security and operation
Usage and analytics	Screens viewed, features used, clicks, session length, cookie and similar identifiers	Your device (automatically)	Optional (non-essential analytics need your consent)
Communications	Support requests, feedback, survey answers, content you submit	You	Optional
Marketing preferences	Your opt-in or opt-out choices and the channel used	You	Optional
Payment details (where its for paid features)	Billing name, transaction reference, last four digits of your card. We do not store full card numbers; our payment processor does.	You; payment processor	Required for paid features

We collect information directly from you wherever possible. We collect it from other sources (such as your Institution only where this is necessary for compliance with POPIA or you have agreed to it. We collect only what is adequate, relevant and not excessive for the purpose.

4. Why we process your information

We process personal information only for specific, lawful purposes related to the App:

Purpose	What this involves	Lawful ground (POPIA)
Create and manage your account	Setting up your profile, authenticating you, keeping your details accurate, resetting passwords	Necessary to perform our agreement with you
Deliver learning services	Enrolling you in courses, recording progress and results, issuing certificates and badges, sharing progress with your instructor or Institution	Necessary to perform our agreement; legitimate interests of you, your Institution and us
Communicate about the service	Account, security, course and policy notices that are not marketing	Necessary to perform our agreement; legitimate interests
Support and complaints	Responding to queries, resolving problems, keeping a record of what was done	Legitimate interests; agreement
Security, fraud and misuse prevention	Detecting suspicious log-ins, enforcing our terms, protecting learners and our systems	Legitimate interests; legal obligation
Improve the App	Understanding how features are used, fixing errors, testing new features, using de-identified or aggregated data	Legitimate interests; consent for non-essential analytics cookies
Direct marketing	News, offers and new courses, and personalised suggestions based on your activity	**Your consent**
Legal and regulatory compliance	Tax, accounting and record-keeping duties; responding to lawful requests from courts and authorities	Legal obligation
Research and statistics	Learning outcome research and reporting, in a form that does not identify you	Compatible further processing; de-identified

We will not use your information for a purpose that is not compatible with the purpose for which we collected it, unless you consent, the law requires it, or section 15 of POPIA otherwise permits it.

5. Children and learners under 18

5.1 POPIA treats anyone under 18 as a "child" and generally prohibits processing a child's personal information unless an exception applies. We rely on the consent of a competent person, meaning a parent or legal guardian, before we open an account for a child or process a child's personal information.

5.2 If a learner is enrolled by an Institution, we will ask the Institution to confirm that it has obtained the required parental or guardian consent, and we may ask the parent or guardian to confirm that consent directly.

5.3 We do not send direct marketing to children, do not build behavioural advertising profiles of children, and do not make children's information public or visible to other learners unless a feature clearly says so and the parent or guardian has agreed.

5.4 A parent or guardian may at any time review, correct or ask us to delete their child's information, or withdraw consent, by contacting us as set out in section 18. If we learn that we hold a child's information without valid consent, we will delete it, unless the law requires us to keep it.

6. Direct marketing

6.1 We will send you electronic direct marketing (email, SMS, in-App messages or similar) **only if you have opted in**, or if you are an existing customer who gave us your details in the context of a sale or service, we are marketing our own similar services to you, and you were given a clear chance to refuse. We do not send marketing to people who are neither of these.

6.2 Every marketing message will include a simple way to opt out. You may also change your preferences in the App settings or contact us at any time. Opting out of marketing does not stop service messages we need to send you (for example, security alerts or course notices).

7. De-identified and aggregated information

We may remove identifiers from personal information, or combine it with other users' information, so that it can no longer reasonably identify you (this is called "de-identification" in POPIA). We use this information to analyse trends, improve the App and report on learning outcomes. We take reasonable steps to prevent re-identification and we will not try to re-identify de-identified information. De-identified information that can no longer identify you is not subject to this Policy.

8. Who we share your information with

8.1 We share personal information only where:

- you have given your consent;
- it is necessary to perform our agreement with you;
- the law requires or permits it; or
- it is necessary to protect the legitimate interests of you, us or another person.

8.2 The recipients may share information with:

- Your instructor and Institution, limited to the information they need to run your course (for example, your progress and results);
- Operators: service providers who process information on our behalf and only on our instructions, such as cloud hosting, email and SMS delivery, analytics, customer-support and payment-processing providers;

- Content or credential providers, to the extent needed to deliver content or issue credentials: confirm the relationship and role of each party;
- Companies in our group, and our professional advisers, auditors and insurers, under duties of confidentiality;
- A buyer or investor, if we sell or restructure our business, who will be bound to protect your information on the same terms; and
- courts, regulators, law-enforcement and other authorities, where the law requires it.

8.3 Each operator must sign a written contract requiring it to process information only for us, to keep it confidential and to maintain appropriate security measures, and to tell us promptly of any compromise (sections 20 and 21 of POPIA). **We do not sell your personal information.**

9. Transfers outside South Africa

Some of our operators, such as cloud hosting providers, may store or process information in other countries. We transfer personal information outside South Africa only where:

- the recipient is subject to a law, binding corporate rules or a binding agreement that provides an adequate level of protection substantially similar to POPIA;
- you consent to the transfer; or
- the transfer is necessary to perform our agreement with you, or to take steps you requested before an agreement, or for your benefit where it is not reasonably practicable to obtain your consent.

10. How we protect your information

10.1 We secure the integrity and confidentiality of personal information by taking appropriate, reasonable technical and organisational measures. These include:

- encryption of information in transit and, where appropriate, at rest;
- role-based access, so that personnel can access only what they need for their work, with regular access reviews;
- logging and monitoring for suspicious activity;
- security requirements and written agreements with our operators; and
- an incident-response procedure and staff training.

10.2 No system is completely secure, and we cannot guarantee absolute security. If we have reasonable grounds to believe that your personal information has been accessed or acquired by an unauthorised person, we will notify the Information Regulator and you **as soon as reasonably possible** after discovering the compromise, taking into account the needs of law enforcement and the measures needed to determine its scope and restore the integrity of our systems. Our notice to you will contain enough information for you to take protective steps.

11. How you can keep your account safe

- **Never share** your log-in details with anyone.
- Use a strong, unique password (at least [12] characters, mixing upper and lower case, numbers and symbols) and consider a password manager.
- Turn on two-step verification [if available] in your account settings.
- Log out on shared devices, and tell us immediately if you suspect that your account has been compromised.
- The App may link to other websites or services. We do not control them, and they have their own privacy policies, which you should read.

12. How long we keep your information

12.1 We keep personal information only for as long as necessary to achieve the purpose for which we collected it, unless the law requires or authorises a longer period, we reasonably require it for a lawful purpose related to our functions, a contract requires it, or you have consented.

12.2 When we no longer need or are allowed to keep information, we will delete or destroy it, or de-identify it, in a way that prevents its reconstruction in an intelligible form.

12.3 If one purpose falls away but another continues (for example, you unsubscribe from marketing but we still need your email address to send account notices), we stop using the information for the first purpose only.

13. Your rights under POPIA

You have the following rights, which you may exercise by contacting our Information Officer and you can:

- request a record or description of your personal information. We might have reasons to say no to some information but you can ask for reasons why;
- ask and receive information about the third-parties who have had access to your personal information;
- ask that we correct inaccurate information. Remember you can also do this yourself any time;
- ask that we delete your personal information; or
- object to us using it (though this may affect the services we offer).

Remember:

- even if you ask us to delete your information or object to us using some of your information, we might still need to keep some of your information for legal reasons;
- it might take some time to make changes to your information and for it to show up in all our systems; and
- we might charge an administrative fee for complex requests.

14. How do we use AI technology and what are the essential elements of our AI systems?

We use AI to help you shop better. For example, AI may suggest products that you might like and help you find what you're looking for faster.

- Our staff use AI as a tool to make your shopping experience better, but AI doesn't make decisions on our behalf. There are still humans behind our AI tools.
- We make sure we use proven and well-tested AI technology.
- Our AI systems adhere to strict privacy and security rules.
- Our AI systems are always checked for biases.

15. Cookies and similar technologies

Cookies and similar technologies are small files or code that store or read information on your device. They help us remember your preferences and previous visits to our platform, so that we can:

- show you what you might like;
- understand how people use our platform so we can make it better;
- See which features people like and which need work through analytics and the collection of anonymous data; and
- spot suspicious activity and keep everyone safe.

You can accept or reject non-essential cookies through the cookie settings in the App or on our website, and can also block them through your browser or device settings. Blocking essential cookies may stop parts of the App from working.

16. Complaints

16.1 If you are unhappy with how we have handled your personal information, or have a question about it, please contact our Information Officer. We will acknowledge your complaint promptly and aim to resolve it within 30 days.

16.2 If we cannot resolve your complaint, you may complain to the **Information Regulator (South Africa)**:

Complaints	POPIAComplaints@inforegulator.org.za
General enquiries	enquiries@inforegulator.org.za
Address	JD House, 27 Stiemens Street, Braamfontein, Johannesburg, 2001
Website	https://inforegulator.org.za

17. Changes to this Policy

We may update this Policy from time to time, for example when the App, our practices or the law change. We will post the updated version in the App and show its effective date. If a change is material, we will notify you in the App or by email before it takes effect, and where the law requires, ask for your consent again.

18. Contact details and governing law

Responsible party	Digititan Holdings (Pty) Ltd, Reg. No.2017/361732/07; The Innovation Hub, No.1 Mark Shuttleworth Street, Lynwood, Pretoria, 0087.
Information Officer	Nelisiwe Msiza; nelisiwem@digititan.co.za
Deputy Information Officer	Molatelo Mapanya; molatelom@digititan.co.za
Help Centre	info@digititan.co.za

This Policy is governed by the laws of the Republic of South Africa. Nothing in it limits any right you have under POPIA, the Consumer Protection Act 68 of 2008 or any other law that cannot lawfully be limited. If any provision of this Policy is found to be invalid or unenforceable, the remaining provisions remain in force.